

The Judiciary

Three Tiers, One Source

District Courts

Established by statute · trial-level jurisdiction

/

Appellate Courts

Senior judge auto-fills any SC vacancy

/

Supreme Court

At least 5 justices · statutory size · staggered classes

The Judicial Pool - §4.2, §9.4.a

One unified pool feeds every federal judicial appointment. Entry requires 15 years of legal practice or 10 years of judicial service, no current government position, and no disqualifying financial interest - the same floor for an inferior court nominee and a Supreme Court nominee alike. The Elections Panel administers it; the JM audits it; the pool is publicly accessible on the NRS at all times.

Inferior Court Judge

CC nominates / Senate confirms 2/3 / 12-year term

Supreme Court Justice

CC nominates / Senate confirms 2/3 (120 days) / 12-year term

When a Supreme Court Seat Opens Unexpectedly - §4.4, §4.4.a

STAGE 1 · IMMEDIATE

Auto-Designation

Most senior Appellate judge becomes Temporary Associate Justice - full voting rights, no nomination needed.

/

NORMAL PATH

CC Nominates

Within 60-90 days, from the Judicial Pool. Senate must vote within 120 days - no deemed confirmation.

/

IF CC FAILS TO NOMINATE

Assembly / Public Fallback

The Temporary Justice remains. At the later of the next federal electoral period or nomination deadline, the Assembly has 30 days: 2/3 approval sends the Temporary Justice to public confirmation; inaction also triggers the ballot. CC nomination remains possible until Panel certification. Voters confirm at 60%.

or

IF SENATE FAILS TO CONFIRM

Public Confirmation

If the Senate misses its voting deadline, the CC with 2/3 Assembly consent may put the Temporary Justice on the next federal ballot. Confirmation requires 60%; Senate confirmation before certification of the public vote ends this bypass (§4.4.a).

How a Judge Leaves

Supreme Court Justice §4.3.a

Cause required / Concurrent vote / 2/3 both chambers

Three grounds: constitutional breach in judicial authority, demonstrated permanent incapacity, or serious misconduct. No Monitor finding is required. Published grounds and concurrent 2/3 votes of both chambers are required; judicial disagreement is never cause.

Inferior Court Judge §4.2

Legislative/ Judicial discipline/ Cause required

Two removal tracks, both for cause: legislative removal by 2/3 of both chambers, or statutory judicial discipline under SC oversight. No Monitor finding is a prerequisite. Policy disagreement is never cause (§4.2).

Numbers Worth Remembering

12

years - single non-renewable term, identical for inferior court judges and SC justices alike. No reappointment, ever.

5

justices minimum to decide a constitutional question - regardless of how many seats are currently filled.

48h

maximum for the SC to rule on immediate defensive military authority - the Court sets its own procedures for expedited review.